

SENATE No. 2659

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

SENATE, November 3, 2025.

The committee on Children, Families and Persons with Disabilities, to whom was referred the petitions (accompanied by bill, Senate, No. 107) of Joanne M. Comerford and Nick Collins for legislation to establish a bill of rights for children in foster care; (accompanied by bill, Senate, No. 125) of Ryan C. Fattman, Joseph D. McKenna and Bruce E. Tarr for legislation to create an electronic backpack for foster children; (accompanied by bill, Senate, No. 127) of Paul R. Feeney and Michael S. Chaisson for legislation to authorize the Commonwealth of Massachusetts to establish additional mandated reporters for the purpose of the protection and care of children; (accompanied by bill, Senate, No. 129) of Paul R. Feeney for legislation to require that mandated reporters complete training at least every two years to recognize and report suspected child abuse or neglect; (accompanied by bill, Senate, No. 133) of Adam Gomez for legislation relative to child fatality review; (accompanied by bill, Senate, No. 148) of Robyn K. Kennedy for legislation to enhance child welfare protections; (accompanied by bill, Senate, No. 159) of Joan B. Lovely for legislation relative to supporting families dealing with sudden unexplained death in pediatrics; and (accompanied by bill, Senate, No. 2585) (subject to Joint Rule 12) of Michael O. Moore for legislation to establish compliance with federal education reporting requirements for out of home placement students, report the accompanying bill (Senate, No. 2659).

For the committee,
Robyn K. Kennedy

SENATE No. 2659

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act enhancing child welfare protections.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Clause (22) of subsection (a) of section 172 of chapter 6 of the General
2 Laws, as appearing in the 2022 Official Edition, is hereby amended by striking out, in line 133,
3 the words “2A of chapter 38” and inserting in place thereof the following words: “15 of chapter
4 18C.”

5 SECTION 2. Section 6A of chapter 18B of the General Laws, as appearing in the 2022
6 official edition, is hereby amended by striking out the fifth paragraph.

7 SECTION 3. Said chapter 18B, as so appearing, is hereby amended by inserting after
8 section 6A the following section:-

9 Section 6B (a) The commissioner or a designee shall appoint an education director who
10 shall establish an education unit within the department. The director shall appoint, subject to the
11 approval of the commissioner or designee, the members of the unit called education specialists
12 who shall be employees of the department and shall devote their full time exclusively to support

the department's goal of educational stability and success for all elementary and secondary school students under the care and custody of the department.

(b) The education director's duties shall include, but shall not be limited to: (i) developing, implementing and overseeing the department's policies on education for children under the care and custody of the department, including policy development and guidance; (ii) monitoring state and federal laws, programs and resources that may impact the education of children under the care and custody of the department; (iii) advising the commissioner and all education specialists on all matters relating to education, strategic education initiatives, policy, and practice management matters; (iv) coordinating efforts of the education specialists to identify and address systematic barriers to accessing educational services for children under the care and custody of the department, including issues related to transportation for children in department care or custody to attend their school of origin; (v) coordinating with the department area and regional offices on education related issues; and (vi) facilitating best practice training for educational specialists. The education director shall perform such duties as are described in this chapter and such other duties as may be assigned by the commissioner.

(c) The focus of the education unit shall include, but shall not be limited to: (i) implementing and overseeing the regional and area office's work on education for children receiving services from the department, consistent with the policies created by the department's education director; (ii) monitoring student academic progress of children under the care and custody of the area office not less than once per academic quarter; (iii) providing support and assistance to department social workers regarding educational needs of children; (iv) providing detailed training to department social workers on the best practices to monitor a child's education experiences, recognizing any unavailability of resources preventing a child from participating in

36 school courses, and developing individual education plans or 504 plan; (v) ensuring the
37 timeliness and accuracy of the transfer of education records detailing a child's educational
38 background and needs; and (vi) maintaining contact with the appropriate local school districts
39 and education organizations to facilitate enrollment, information sharing, and placement of
40 children into school districts served by the area office.

41 (d) An education specialist may accompany social workers to meetings with school
42 personnel, including but not limited to meetings relative to a child's individual education plan or
43 504 plan.

44 SECTION 4. Section 7 of said chapter 18B, as so appearing, is hereby amended by
45 striking out subsection (e).

46 SECTION 5. Section 20 of said chapter 18B, as so appearing, is hereby amended by
47 striking out the second sentence.

48 SECTION 6. Section 23 of said chapter 18B, inserted by section 45 of chapter 176 of the
49 acts of 2008, is hereby repealed.

50 SECTION 7. Section 23 of said chapter 18B, inserted by section 8 of chapter 321 of the
51 acts of 2008, is hereby amended by striking out the sixth sentence.

52 SECTION 8. Sections 24 and 25 of said chapter 18B are hereby repealed.

53 SECTION 9. Said chapter 18B is hereby further amended by adding the following 2
54 sections:-

55 Section 26. (a) For the purposes of this section, the term "legislatively mandated report"
56 shall mean a report required by law of the department of children and families.

(b) (1) Annually, not later than October 31, the department shall issue a report that provides an overview of the department's performance during the previous fiscal year. The report shall also include comparative departmental information from prior fiscal years. The commissioner or a designee shall file the report with the governor, the child advocate, the clerks of the senate and house of representatives, the house and senate committees on ways and means and the joint committee on children, families and persons with disabilities. The commissioner shall provide the recipients of the report with an opportunity to discuss its contents with the commissioner or designee. The report shall be made publicly available on the department's website in accordance with section 19 of chapter 66.

(2) The report shall include, but not be limited to, narratives, information, data and analysis on: (i) counts, including but not limited to: (A) case counts; (B) consumer counts; (C) consumer demographic information, including age, race, ethnicity, primary language, birth sex, gender identity, sexual orientation and disability; (D) the number of consumers who have slept in temporary locations by region, the average length of stay, and any system wide challenges for finding placement (E) intersectional data; (F) rates of racial disproportionality and disparity at various decision points throughout the life of a case, including but not limited to; (1) protective intakes and responses: (2) consumer children 0-17 years of age with an open case as compared to the proportion of the child population in Massachusetts; (3) the number of children and youth in placement by placement type; (4) permanency plans for children and youth in placement, including plans meeting the federal permanency standard; (5) permanency outcome as compared to children in placement; (6) the median placement length of stay in days for children who exited care as well as for children who were in out-of-home care; (7) placement moves per 1,000 placement days for children who entered care during the specified fiscal year; (8) exits from care

to reunification, adoption and guardianship as a rate of all exits from placement; (9) youth aging out as a rate of all exits from placement; (G) the approximate number of requests for reasonable accommodations; (H) the number of disability related complaints filed with the department; (I) reports filed pursuant to section 51A of chapter 119; (I) placement metrics including but not limited to (1) placement moves per 1,000 placement days for children who entered care during the specified fiscal year; (2) initial placement with kin; (3) the median number of placements between a home removal episode and an initial placement review; (J) infants brought into the department's care pursuant to section 39½ of chapter 119; (K) siblings in placement; (ii) processes and outcomes including, but not limited to: (A) protective responses and safety outcomes; (B) the number of fatalities including the manner of death and fatalities by family history with the department; (C) permanency processes and outcomes, including, but not limited to, reunification, adoption, guardianship, kinship adoption, kinship guardianship and aging out; (D) well-being outcomes, including the rates and timeliness of the delivery of medical and behavioral health services; (E) educational well-being outcomes, including but not limited to: (1) school placement information; (2) the number of Individualized Education Plans; (3) attendance rates; (4) high school graduation rates and (5) school disciplinary actions; and (iii) operations, including but not limited to: (A) staffing trends; (B) caseloads; (C) the department's budget, including funding levels; (D) service costs, including but not limited to, departmental foster care, contracted foster care, complex medical foster care, congregate care, adoption and guardianship subsidies, foster care support services, respite and support and stabilization; (E) medical services and advancements in providing medical services to children and young adults in the department's care; (F) the number of children and young adults in the department's care in emergency departments, inpatient units, psychiatric hospitals, or community-based acute

treatment programs who are awaiting alternate placements and the average duration of days waiting; (G) cost resources and practices, to reduce overrepresentation of children and youth of minority populations in the child welfare system due to over reporting; and (J) any new or ongoing initiatives to improve practices, procedures and policy of the department. The department may provide additional narrative pursuant to health, mental health, disability and disproportionality related metrics where numerical metrics are not available. (K) The commissioner or designee, shall submit a report to the office of the child advocate, house and senate committees on ways and means, the joint committee on children, families and persons with disabilities, and the house and senate clerks' offices on the number and types of complaints or alleged violation received pursuant to the Foster Child Bill of Rights, pursuant to section 23D of chapter 119 of the General Laws, as inserted by section 53 of this act. This report shall follow the filing requirements of subsection (b).

(c)(1) Quarterly, not more than 45 days after the end of each fiscal quarter, the department shall issue a quarterly profile on its website in accordance with section 19 of chapter 66 that shall include, but not be limited to, departmental, regional office and area office data on: (i) consumer counts; (ii) the number of reports filed pursuant to section 51A of chapter 119, including but not limited to counts of reports received, screened-in and screened-out in total and by reporter role; (iii) rates and recurrence of maltreatment; (iv) department case counts, including counts of clinical and adoption cases; (v) consumer demographic information, including age, race, ethnicity, primary language, birth sex, gender identity and sexual orientation and disability; (vi) counts of children and youth in placement by type of placement; (vii) counts of children and youth not in placement.

(2) The commissioner or designee shall notify the house and senate committees on ways and means and the joint committee on children, families and persons with disabilities when data from a profile issued pursuant to paragraph (1) significantly departs from trends reported in previous profiles.

(d) The commissioner or designee shall notify the joint committee on children, families and persons with disabilities within one week of a consumer in the department's custody sleeping in the department's area office overnight by region including the average length of stay, the consumers' ages, previous placement type and challenge for finding placement.

(e) Annually, not later than October 31, the department shall file a special report on services provided to young adults over the age of 18 with the child advocate, the clerks of the senate and house of representatives, the house and senate committees on ways and means and the joint committee on children, families and persons with disabilities. The report shall summarize the process by which a young adult may continue to receive services from the department upon reaching the legal adult age of 18. The report shall also include but not be limited to consumer demographic information detailing age, race, ethnicity, primary language, gender identity, sexual orientation, disability and rates of racial disproportionality and disparity but not be limited to: (i) the number of young adults who have elected to sustain or reestablish a connection with the department in the previous fiscal year; and (ii) the number of young adults who have elected not to remain with the department and have transitioned out of the child welfare system in the previous fiscal year, including young adults who had previously elected to sustain a connection with the department, if such numbers are available, (iii) the number of transition age youth aging out with: (1) stable and permanent housing; (2) employment (full or part-time) or military enlistment; (3) health insurance; (4) if sought, post-secondary education such as college, job

148 training or certificate program within six (6) months. The department may satisfy the reporting
149 requirements of this section by providing the requested information in an annual report filed
150 under subsection (b) of this section.

151 (f) Annually, not later than October 31, the department shall file a special report on its
152 fair hearing processes and cases with the child advocate, the clerks of the senate and house of
153 representatives, the house and senate committees on ways and means and the joint committee on
154 children, families and persons with disabilities. The department may satisfy the reporting
155 requirement of this section by providing the requested information in an annual report filed under
156 section 26. The report shall be made available to the public electronically in accordance with
157 section 19 of chapter 66. The report shall include, but not be limited to, information in a form
158 that shall not include personally identifiable information on the fair hearing requests open at any
159 time during the previous fiscal year and, for each hearing request, shall provide: (i) the subject
160 matter of the appeal; (ii) the outcomes of cases resolved prior to a fair hearing decision; (iii) the
161 number of days between the hearing request and the first day of the hearing; (iv) the number of
162 days between the close of the evidence and the hearing officer's decision; (v) the number of days
163 of continuance granted at the appellant's request; (vi) the number of days of continuance granted
164 at the request of the department or the hearing officer, specifying which party made the request;
165 and (vii) whether the department's decision that was the subject of the appeal was affirmed or
166 reversed.

167 The department shall maintain and make available to the public during regular business
168 hours, a record of its fair hearings in a form that shall not include personally identifiable
169 information and that shall include, for each hearing request: (i) the date of the request; (ii) the
170 date of the hearing decision; (iii) the decision rendered by the hearing officer; and (iv) the final

171 decision rendered upon the commissioner's review. For fair hearing requests that are pending for
172 more than 180 days at any time during the fiscal year, except for those requests which have been
173 stayed at the request of the district attorney, the report shall provide the number of such cases,
174 how many of those cases have been heard but not decided and how many have been decided by
175 the hearing officer but not yet issued a final agency decision.

176 (g) Annually, not later than October 31, the department shall file a special report on the
177 foster care review system and any recommendations for its improvement, with the child
178 advocate, the clerks of the senate and house of representatives, the house and senate committees
179 on ways and means and the joint committee on children, families and persons with disabilities.
180 The report shall be made available to the public electronically in accordance with section 19 of
181 chapter 66. The report shall include, but not be limited to: (1) the department served population,
182 including but not limited to case counts, child/youth/young adult and parent/caregiver counts and
183 children/youth/young adults in placement; (2) a foster care review overview, including but not
184 limited to foster care review policy, numbers of children/youth/young adults in placement with a
185 convened foster care review and foster care review considerations; (3) scheduling, including but
186 not limited to scheduled and convened foster care review meetings, children/youth/young adults
187 reviewed, duration of meetings and timeliness of foster care review report completion; (4)
188 attendance, including but not limited to foster care review meeting panel composition and
189 mandated participants invited and attended; (5) the review process, including but not limited to
190 the department action plan; placement activities; social worker contact; parent-child visitation;
191 health, education and well-being needs; information on youth/young adults and systemic barriers
192 for children/youth/young adults and parents/caregivers; (6) foster care review determinations; (7)

193 minority opinions, including but not limited to minority opinions by panel member and (8) foster
194 care review follow-up activities.

195 (h) The commissioner or designee shall notify the joint committee on children, families
196 and persons with disabilities when draft regulations are made available by the department for
197 public comment. Not more than 30 days after the promulgation of regulations or the effective
198 date of adopted or revised departmental policies relative to services provided to children and
199 families, the department shall provide copies of the regulations or departmental policies to the
200 joint committee on children, families and persons with disabilities.

201 (i) If the department is unable to submit the report under subsection (b), issue the profile
202 under subsection (i) or any other legislatively mandated reports by the respective deadlines, the
203 commissioner or the commissioner's legal counsel shall notify the governor, the child advocate,
204 the clerks of the senate and house of representatives, the house and senate committees on ways
205 and means and the joint committee on children, families and persons with disabilities in writing
206 and provide an explanation for the delay.

207 (j) The department may satisfy the reporting requirements of this section by providing the
208 requested information in an annual report as required under chapter 18B.

209 Section 27. The department, in consultation with the general court, other governmental
210 and nongovernmental partners, shall establish a 5-year plan that shall include numerical targets
211 for the department's performance in each year and in each of its regions in the areas of safety,
212 permanence and well-being. The plan shall include a description of how the department will
213 measure its progress toward meeting the numerical targets and may include different targets for
214 different regions. The department shall update the plan annually.

215 Annually, the department shall measure its performance in meeting the targets established
216 in the 5-year plan for the commonwealth as a whole and for each of its regions consistent with
217 the methodology described in the plan. The department shall publish and maintain on its website
218 the current plan, the targets for previous years and the department's performance in meeting
219 those targets.

220 If in a fiscal year the department is unable to develop or update the 5-year plan or
221 measure its performance, the department shall notify the clerks of the house or representatives
222 and senate, the house and senate committees on ways and means, the joint committee on
223 children, families and persons with disabilities and the child advocate.

224 SECTION 10. Chapter 18C of the General Laws, as appearing in the 2022 Official
225 Edition, is hereby amended by striking out section 1 in its entirety, and inserting in place thereof
226 the following section:-

227 Section 1. As used in this chapter, the following words shall have the following meaning
228 unless the context clearly requires otherwise:

229 “Child advocate”, the child advocate appointed under section 3.

230 “Child-serving individual,” an individual who, in their professional role, has consistent
231 access to children and are often alone with children and/or are responsible for their care. A
232 child-serving individual may be a staff member, a contractor, or temporary employee at a public
233 or private organization.

234 “Child-Serving Volunteer,” an individual who, without compensation or expectation of
235 compensation, provides services or supports in a capacity that involves direct contact with,

supervision of, or responsibility for the care, education, treatment, or welfare of children under the age of eighteen at a public or private organization. This includes, but is not limited to, volunteers in schools, childcare programs, youth-serving organizations, recreational or athletic programs, faith-based programs, mentoring or tutoring services, and residential or congregate care settings.

“Critical Incident”, (i) a fatality, near fatality, or serious bodily, or emotional injury, of a child, or the indecent assault and battery of a child in accordance with M.G.L. c. 265 §§ 13B-13B ¾ and §§ 23-23B, who is in the custody of or receiving services from an executive agency or a constituent agency; or (ii) circumstances which result in a reasonable belief that an executive agency or a constituent agency failed in its duty to protect or adequately serve a child and, as a result, the child was at imminent risk of, or suffered serious bodily or emotional injury or death.

“Department”, the department of children and families.

“Emotional Injury”, occurs when a child of any age witnesses the fatality or life-threatening incident of an individual related to an unexpected medical event, overdose, violent act, or suicide.

“Executive agency”, a state agency within the office of the governor, including that provides services to children, including services through contracted providers and through entities licensed by the state agency. Executive agencies include the executive office of education, the executive office of health and human services, and their constituent agencies, the Massachusetts interagency council on housing and homelessness and the executive office of housing and livable communities.

“Near fatality”, is an injury that is accidental, the result of a medical condition, or the result of abuse and neglect and is dependent on verbal certification by a physician that the child’s condition is considered to be life threatening.

“Office”, the office of the child advocate.

“Sudden unexplained death in pediatrics”, the sudden and unexpected death of an infant or child, under the age of three, where a cause is not immediately known before investigation.

“Serious bodily injury”, an injury which involves a substantial risk of death, extreme physical pain, protracted and obvious disfigurement or protracted loss or impairment of the function of a bodily member, organ or mental faculty or emotional distress.

SECTION 11. Section 2 of said chapter 18C, as so appearing, is hereby amended by striking out, in lines 2 and 3, the words “shall be independent of any supervision or control by any executive agency” and inserting in place thereof the following words:- shall be an independent state agency, whose function is to oversee the service executive agencies provide to children, not subject to the supervision and control of any other executive office, department, commission, board, bureau, agency or political subdivision of the commonwealth.

SECTION 12. Said section 2 of said chapter 18C, as so appearing, is hereby further amended by striking out subsection (c) and inserting in place thereof the following words:- (c) examine, on a system-wide and individual case basis, the care and services that executive agencies, particularly the Department of Children and Families, the Department of Youth Services, the Department of Public Health, the Department of Mental Health, the Department of Developmental Services, the Department of Early Education and Care, and the Department of

278 Elementary and Secondary Education, provide to children through direct services, guidance and
279 oversight, contracted services and licensing functions;

280 SECTION 13. Said section 2 of said chapter 18C, as so appearing, is hereby further
281 amended by striking out, in line 17, the second time it appears, the word “and”.

282 SECTION 14. Said section 2 of said chapter 18C, as so appearing, is hereby further
283 amended by striking out subsection (e) and inserting in place thereof the following subsection:-
284 (e) examine disproportionality related to topics including, but not limited to, race, ethnicity,
285 disability status, transgender status, sexual orientation or gender identity within child state
286 systems, services and agencies.

287 SECTION 15. Said section 2 of said chapter 18C, as so appearing, is hereby further
288 amended by adding the following subsection:- (f) partner with executive agencies or other
289 entities to support pilot programs and expand or improve current programs when, in the child
290 advocate’s sole discretion, the child advocate determines that such partnership does not
291 jeopardize the office’s oversight functions and the child advocate determines that such
292 partnership is in the best interest of the children of the Commonwealth; and

293 SECTION 16. Said section 2 of said chapter 18C, as so appearing, is hereby further
294 amended by adding the following subsection:- (g) provide training and technical assistance to
295 executive agencies to improve services to children when, in the child advocate’s sole discretion,
296 the child advocate determines that such training and technical assistance does not jeopardize the
297 office’s oversight functions and the child advocate determines that such training and technical
298 assistance is in the best interest of the children of the Commonwealth.

SECTION 17. Said section 2 of said chapter 18C is hereby further amended by striking out, in line 20, the word “services.” and inserting in place thereof the following words:- “services; and”.

SECTION 18. Said section 2 of said chapter 18C, as so appearing, is hereby further amended by adding the following 7 paragraphs:-

The office shall create and maintain a website that makes available mandated reporter trainings, guidance, statutory reference and best practices materials in one online location to all mandated reporters in the commonwealth. The website shall also contain a list of available resources for families who need support and guidance on how mandated reporters can connect individuals or families to those resources. The office shall consult with, or partner with, any public or private entity that the child advocate deems relevant to create and maintain this website. The office shall be responsible for ensuring that information on the website remains current. The office shall collect data on how many individuals access the website. The website shall be made available to the public within one year of the effective date of this legislation.

The office shall create and make available to the public, on the website created in this section, evidence-based mandated reporter training for all mandated reporters in the commonwealth. The training shall include, but is not limited to, training in child abuse and neglect reporting, technical instruction on how to file a 51A report and details on the department’s process regarding the filing and treatment of 51A reports, and should address bias in mandated reporting. Training shall aim to improve the quality of reporting and discourage reports that do not rise to the relevant statutory standard, including, but not limited to, information on how to address concerns with families and children when those concerns do not

rise to the level of requiring a maltreatment report, information about connecting families with needed supports and resources and how to understand what qualifies as neglect.

The office may, as appropriate, expand, update or amend mandated reporter training. The office may create additional evidence-based mandated reporter trainings for specific groups of individuals such as educators, childcare workers, social workers and foster parents. The office of the child advocate may consult, or partner with, any public or private entity that the child advocate deems relevant to create, update, expand, implement or amend any mandated reporter trainings the office creates. As needed, the office shall solicit feedback on mandated reporter training from mandated reporters who have participated in the training created by the office.

The office must include on their website a method that is accessible after the training has been completed by which members of the public can submit feedback on the training at any point in time. Further, the office must include in its annual report data on the use and effectiveness of the training and the feedback that was collected from the individuals who took the training.

The office shall be responsible for approving curricula for mandated reporter trainings in accordance with M.G.L. c. 119 §51A(k). Such curricula shall include, but not be limited to: recognition of the signs of child neglect or abuse and related reporting requirements; prevention, identification, and reporting of child sexual abuse and problematic sexual behaviors between minors; information on the ways in which the behavioral and verbal cues for sexual abuse differ from those of other forms of abuse and neglect; bias and cultural considerations in reporting; information on how to address concerns with families and children when those concerns do not rise to the level of requiring a maltreatment report; information about connecting families with needed supports and resources; and how to understand what qualifies as neglect.

343 The office shall create a training module or approve curricula for child-serving
344 individuals and child-serving volunteers. Such curricula shall include, but not be limited to
345 recognition of the signs of child neglect or abuse; prevention, identification, and reporting of
346 child sexual abuse and problematic sexual behaviors between minors; information on the ways
347 in which the behavioral and verbal cues for sexual abuse differ from those of other forms of
348 abuse and neglect; bias and cultural considerations; information on how to address concerns with
349 families and children when those concerns do not rise to the level maltreatment; information
350 about connecting families with needed supports and resources; how to understand what qualifies
351 as neglect, and options for voluntary reporting.

352 The office shall create and maintain information and a list of resources for parents or
353 guardians of a child who has experienced a sudden unexpected death in pediatrics. Such
354 information shall include, but is not limited to, resources to obtain genetic testing, ongoing
355 bereavement support, counseling, and grief support. Information and resources shall be made
356 publicly available.

357 SECTION 19. Section 3 of said chapter 18C, as so appearing, is hereby amended by
358 inserting after the word “health”, in line 10, the following words:- “; the speaker of the house of
359 representatives, or designee; the senate president, or designee; the house minority leader, or
360 designee; the senate minority leader, or designee; a person with experience in the child welfare
361 system to be designated by the Massachusetts Network of Foster Care Alumni; a person with
362 experience as a foster parent to be designated by the Massachusetts Alliance for Families”.

363 SECTION 20. Section 3 of said chapter 18C, as so appearing, is hereby amended by
364 striking out, in lines 10 and 11, the words “child abuse prevention board” and inserting in place
365 thereof the following words:- Children’s Trust

366 SECTION 21. The fourth paragraph of said section 3 of said chapter 18C, as so
367 appearing, is hereby further amended by adding the following sentence:- “The child advocate’s
368 annual salary shall be 90 percent of the salary of the chief justice of the supreme judicial court.”

369 SECTION 22. Said chapter 18C is hereby further amended by striking out section 4 and
370 inserting in place thereof the following section:-

371 “Section 4. Child advocate advisory board.

372 The child advocate shall meet with the governor, the speaker of the house of
373 representatives, the senate president, the attorney general, the state auditor, the chief justice of
374 the trial court, and the chief justice of the juvenile court at least annually and shall present the
375 annual goals of the office set by the child advocate and its plans for monitoring the work,
376 including the continuous quality improvement, of executive agencies and the identification of
377 any critical gaps and issues relating to interagency collaboration.”

378 SECTION 23. Section 5 of said chapter 18C, as so appearing, is hereby amended in
379 subsection (a), in line 2, by inserting after the word “occurred” the following words:-
380 Notification shall include the demographic information of the child, if known.

381 SECTION 24. Section 5 of said chapter 18C, as so appearing, is hereby amended in
382 subsection (a), by striking out the word “he” and inserting in place thereof the following word, in
383 each instance, in said section:- they

384 SECTION 25. Section 5 of said chapter 18C, as so appearing, is hereby amended in
385 subsection (a) by striking out the word “his” and inserting in place thereof the following word, in
386 each instance, in said section:- their

387 SECTION 26. Section 5 of said chapter 18C, as so appearing, is hereby amended in
388 subsection (b), in line 18, by striking out the word “he” and inserting in place thereof the
389 following word,:- they

390 SECTION 27. Section 5 of said chapter 18C, as so appearing, is hereby amended in
391 subsection (b), in lines 16, 19, and 21 by striking out the word “his” and inserting in place
392 thereof the following word:- their

393 SECTION 28. Section 5 of said chapter 18C, as so appearing, is hereby amended in
394 subsection (b), in line 25, by striking out the word “his” and inserting in place thereof the
395 following words:- the office’s

396 SECTION 29. Section 5 of said chapter 18C, as so appearing, is hereby amended in
397 subsection (c), in line 28, by striking out the word “him” and inserting in place thereof the
398 following words:- the child advocate

399 SECTION 30. Section 5 of said chapter 18C, as so appearing, is hereby further amended
400 by adding in subsection (d) after the phrase “access to behavioral health services,” the words:
401 “access to support for parents or guardians of a child who has experienced a sudden unexpected
402 death in pediatrics,”

403 SECTION 31. Section 5 of said chapter 18C, as so appearing, is hereby amended by
404 adding the following subsection:-

405 “(i) The child advocate shall notify the governor, the attorney general, the auditor, the
406 speaker of the house of representatives and the senate president when conducting an
407 investigation which the Child Advocate plans to release publicly due to a reasonable belief that
408 an executive agency or constituent agency failed in its duty to protect or adequately serve a child.
409 In order to ensure the integrity and independence of the office, the governor, the attorney
410 general, the auditor, the speaker of the house of representatives and the senate president shall
411 receive the final full report of such an investigation before any executive office, agency or
412 program that is the subject of said investigation.”

413 SECTION 32. Section 5 of said chapter 18C, as so appearing, is hereby amended by
414 adding the following subsections:-

415 (j) The department shall inform the child advocate as soon as practicable when a foster
416 care review safety alert is issued. The office shall review the circumstances of that foster care
417 review safety alert and provide feedback to the department on individual cases and trends in
418 services.

419 SECTION 33. Section 6 of said chapter 18C, as so appearing, is hereby amended by
420 striking out the word “his” and inserting in place thereof the following word:- their

421 SECTION 34. Section 6 of said chapter 18C, as so appearing, is hereby amended by
422 inserting, in line 8, after the words “access to” the following words:- all court records that the
423 child advocate deems

424 SECTION 35. Section 6 of said chapter 18C, as so appearing, is hereby amended by
425 inserting, in line 8, after the word “relevant” the following word:- including

SECTION 36. Section 6 of said chapter 18C, as so appearing, is hereby amended by inserting, in line 10, after the word “court” following words:- records held by the Massachusetts Probation Service, and records on adults and juveniles contained in the electronic information systems maintained by the department of criminal justice information services, including personally identifiable information if requested by the child advocate.

SECTION 37. Section 9 of said chapter 18C, as so appearing, is hereby amended by striking out the word “his” and inserting in place thereof the following word:- their

SECTION 38. Section 10 of said chapter 18C, as so appearing, is hereby amended by inserting after the number “5” in line 7 the following words:- “,data described in section 2 of this chapter related to the mandated reporter training and website”.

SECTION 39. Section 11 of said chapter 18C, as so appearing, is hereby amended by striking out section 11 in its entirety, and inserting in place thereof the following section:-

Section 11. Examination of systemwide services

The child advocate, in their independent role or in their role as chair of the Juvenile Justice Policy and Data Board, may examine systemwide challenges to the provision of adequate services to children. The child advocate may prioritize challenges that include multiple state agencies or secretariats and challenges that affect the most vulnerable children. Such systemwide examinations will include recommendations for improvements to the state system of services for children. The child advocate may utilize any source of information available to the office to make recommendations and may seek advice from individuals with expertise in relevant fields of work or study in preparing a report under this section. The child advocate shall file a report on any such examination with the governor, the clerks of the senate and house of representatives,

the senate and house committees on ways and means, the joint committee on children, families and persons with disabilities, and shall report on any such examination in the annual report pursuant to section 10.

SECTION 40. Section 12 of said chapter 18C, as so appearing, is hereby amended, in subsection (a), in line 3, by inserting after the word “Notwithstanding” the following words:- sections 167 and 172 of chapter 6,

SECTION 41. Section 12 of said chapter 18C, as so appearing, is hereby amended, in subsection (a), in line 12, by striking out the word “his” and inserting in place thereof the following word:- their

SECTION 42. Section 12 of said chapter 18C, as so appearing, is hereby amended, in subsection (b), in line 21, by inserting after the number “4” the following words:- and under chapter 66A

SECTION 43. Section 12 of said chapter 18C, as so appearing, is hereby amended, in subsection (c), in line 23, by striking out the word “his” and inserting in place thereof the following word:- the

SECTION 44. Section 12 of chapter 18C, as so appearing, is hereby further amended by striking subsection (e), and inserting in place thereof:-

(e) The restrictions of this section shall not preclude:

(i) the child advocate from sharing with the governor, the attorney general, a district attorney, a secretary, an agency commissioner or other agency personnel, the speaker of the house of representatives, the senate president, or the chairs of the joint committee on children,

469 families and persons with disabilities, the report of, or the results of, a critical incident
470 investigation involving that agency. Any executive or legislative branch employees who receive
471 such a document shall be bound by the confidentiality requirements of this section.

472 (ii) the child advocate from sharing information with a state agency when the child
473 advocate deems, in their sole discretion, that such information sharing is necessary for the child
474 advocate to perform the child advocate's duties.

475 (iii) the child advocate from issuing a public report when such report, in the sole
476 discretion of the child advocate, is necessary for the child advocate to perform the child
477 advocates duties.

478 SECTION 45. Section 13 of chapter 18C, as so appearing, is hereby amended, in line 5,
479 by striking out the word "his" and replacing it therefore with the following word:- their

480 SECTION 46. Chapter 18C of the General Laws, as so appearing, is hereby amended by
481 inserting after section 14 the following section:

482 Section 15: (a) As used in this section the following words shall, unless the context
483 clearly requires otherwise, have the following meanings:

484 "Child", a person under the age of 18.

485 "Fatality", a death of a child.

486 "Local team", a local child fatality review team established in subsection (c).

487 "Near fatality", an act that, as certified by a physician, places a child in serious or critical
488 condition.

489 “State team”, the state child fatality review team established in subsection (b).

490 “Team”, the state or a local team.

491 “Office”, the office of the child advocate.

492 (b) There shall be a state child fatality review team within the office. Notwithstanding
493 section 172 of chapter 6, members of the state team shall be subject to criminal offender record
494 checks to be conducted by the colonel of state police on behalf of the child advocate. All
495 members shall serve without compensation for their duties associated with membership on the
496 state team.

497 The state team shall consist of not less than: (i) the child advocate, or designee, who shall
498 serve as co-chair; (ii) the commissioner of public health, or designee, who shall serve as co-
499 chair; (iii) the chief medical examiner, or designee; (iv) the attorney general, or designee; (v) the
500 commissioner of children and families, or designee; (vi) the commissioner of elementary and
501 secondary education, or designee; (vii) a representative selected by the Massachusetts District
502 Attorneys Association; (viii) the colonel of state police, or designee; (ix) the commissioner of
503 mental health, or designee; (x) the commissioner of developmental services, or designee; (xi) the
504 director of the Massachusetts Center for Unexpected Infant and Child Death at Boston Medical
505 Center, or designee; (xii) the commissioner of youth services, or designee; (xiii) the
506 commissioner of early education and care, or designee; (xiv) a representative selected by the
507 Massachusetts chapter of the American Academy of Pediatrics who has experience in diagnosing
508 or treating child abuse and neglect; (xv) a representative selected by the Massachusetts Health
509 and Hospital Association, Inc.; (xvi) the president of the Massachusetts Chiefs of Police
510 Association Incorporated, or designee; (xvii) the Department of Children and Families Chapter

511 President or designee of the certified collective bargaining representative of bargaining unit 8;
512 and (xviii) any other person, selected by the co-chairs or by majority vote of the members of the
513 state team, with expertise or information relevant to an individual case. The purpose of the state
514 team shall be to decrease the incidence of preventable child fatalities and near fatalities by: (1)
515 developing an understanding of the causes and incidence of child fatalities and near fatalities;
516 and (2) advising the governor, the general court and the public by recommending changes in law,
517 policy and practice to prevent child fatalities and near fatalities. The state team may consult with
518 the chief justice of the juvenile court department of the trial court of the commonwealth on issues
519 with a direct bearing upon the business of the Massachusetts courts.

520 To achieve its purpose, the state team shall: (i) develop model investigative and data
521 collection protocols for local teams; (ii) provide information to local teams and law enforcement
522 agencies for the purpose of protecting children; (iii) provide training and written materials to
523 local teams to assist them in carrying out their duties; (iv) review reports from local teams; (v)
524 study the incidence and causes of child fatalities and near fatalities in the commonwealth; (vi)
525 analyze community, public and private agency involvement with the children and their families
526 prior to and subsequent to fatalities or near fatalities; (vii) develop a protocol for the collection of
527 data regarding fatalities and near fatalities and provide training to local teams on the protocol;
528 (viii) develop and implement rules and procedures necessary for its own operation; and (ix)
529 provide the governor, the general court and the public with annual written reports, subject to
530 confidentiality restrictions, that shall include, but not be limited to, the state team's findings and
531 recommendations.

532 (c) There shall be a local child fatality review team in each district established under
533 section 13 of chapter 12. Notwithstanding section 172 of chapter 6, members of a local team

shall be subject to criminal offender record checks to be conducted by the district attorney. All members shall serve without compensation for their duties associated with membership on a local team.

Each local team shall include, but not be limited to: (i) the district attorney of the county, who shall serve as chair; (ii) the chief medical examiner or, designee; (iii) the commissioner of children and families or, designee; (iv) a pediatrician with experience in diagnosing or treating child abuse and neglect, appointed by the state team; (v) a local police officer from a municipality where a child fatality or near fatality occurred, appointed by the chief of police of the municipality; (vi) a state law enforcement officer, appointed by the colonel of state police; (vii) the director of the Massachusetts Center for Unexpected Infant and Child Death located at Boston Medical Center or a designee; (viii) at least one representative from the department of public health (ix) at least one representative from the office of the child advocate; (x) a designee of the collective bargaining representative's Department of Children and Families Chapter President who represents the region where the fatality occurred; and (xi) any other person with expertise or information relevant to an individual case who may attend meetings, on an ad hoc basis, by agreement of the permanent members of each local team; provided that such person may include, but shall not be limited to, a local or state law enforcement officer, a hospital representative, a medical specialist or subspecialist, or a designee of the commissioners of developmental services, mental health, youth services, education and early education and care.

The purpose of each local team shall be to decrease the incidence of preventable child fatalities and near fatalities by: (i) coordinating the collection of information on fatalities and near fatalities; (ii) promoting cooperation and coordination between agencies responding to fatalities and near fatalities and in providing services to family members; (iii) developing an

understanding of the causes and incidence of child fatalities and near fatalities in the county; and
(iv) advising the state team on changes in law, policy or practice that may affect child fatalities
and near fatalities.

To achieve its purpose, each local team shall: (i) review, establish and implement model
protocols from the state team; (ii) review, subject to the approval of the local district attorney, all
individual fatalities and near fatalities in accordance with the established protocols; (iii) meet
periodically, not less than 2 times per calendar year, to review the status of fatality and near
fatality cases and recommend methods of improving coordination of services between member
agencies; (iv) collect, maintain and provide confidential data as required by the state team; and
(v) provide law enforcement or other agencies with information to protect children.

At the request of the local district attorney, the local team shall be immediately provided
with: (i) information and records relevant to the cause of the fatality or near fatality maintained
by providers of medical or other care, treatment or services, including dental and mental health
care; (ii) information and records relevant to the cause of the fatality or near fatality maintained
by any state, county or local government agency including, but not limited to, birth certificates,
medical examiner investigative data, parole and probation information records and law
enforcement data post-disposition, except that certain law enforcement records may be exempted
by the local district attorney; (iii) information and records of any provider of social services,
including the department of children and families, relevant to the child or the child's family, that
the local team deems relevant to the review; and (iv) demographic information relevant to the
child and the child's immediate family, including, but not limited to, address, age, race, gender
and economic status. The district attorney may enforce this paragraph by seeking an order of the
superior court.

(d) Any privilege or restriction on disclosure established pursuant to chapter 66A, section 70 of chapter 111, section 11 of chapter 111B, section 18 of chapter 111E, chapter 112, chapter 123, section 20B, section 20J or section 20K of chapter 233 or any other law relating to confidential communications shall not prohibit the disclosure of this information to the chair of the state team or a local team. Any information considered to be confidential pursuant to the aforementioned statutes may be submitted for a team's review upon the determination of that team's chair that the review of this information is necessary. The chair shall ensure that no information submitted for a team's review is disseminated to parties outside the team. No member of a team shall violate the confidentiality provisions set forth in the aforementioned statutes.

Except as necessary to carry out a team's purpose and duties, members of a team and persons attending a team meeting shall not disclose any information relating to the team's business.

Team meetings shall be closed to the public. Information and records acquired by the state team or by a local team pursuant to this chapter shall be confidential, exempt from disclosure under chapter 66 and may only be disclosed as necessary to carry out a team's duties and purposes.

Statistical compilations of data that do not contain any information that would permit the identification of any person may be disclosed to the public.

(e) Members of a team, persons attending a team meeting and persons who present information to a team shall not be questioned in any civil or criminal proceeding regarding information presented in or opinions formed as a result of a team meeting.

(f) Information, documents and records of the state team or of a local team shall not be subject to subpoena, discovery or introduction into evidence in any civil or criminal proceeding; provided, however, that information, documents and records otherwise available from any other source shall not be immune from subpoena, discovery or introduction into evidence through these sources solely because they were presented during proceedings of a team or are maintained by a team.

(g) Nothing in this section shall limit the powers and duties of the child advocate or district attorneys.

SECTION 47. Said chapter 18C, as so appearing, is hereby further amended by adding the following section:-

Section 16. The office shall, every three years, oversee the review of child welfare data reporting and make recommendations for improvements to the report and profile required under subsections (b) and (c) of section 26 of chapter 18B and any other legislatively mandated reports, or the data measures, progress measures, and outcome measures pursuant to section 128 of chapter 47 of the acts of 2017. Following the release of the department's annual report, the office shall seek input from the public, advocates and diverse stakeholders from across the commonwealth. The office shall consult with other individuals with relevant expertise, including academics, researchers and service providers. Following such review, the office shall post a report on its recommendations, together with drafts of any legislation necessary to carry its recommendations into effect and an aggregate response to the comments raised during the comment period on the Office of the Child Advocate's website.

SECTION 48. Section 2A of chapter 38 of the General Laws, as so appearing in the 2022 official edition, is hereby repealed.

SECTION 49. Said Chapter 38, as so appearing, is here by amended by adding the following section:-

Section 14. Sudden unexpected death in pediatrics.

(a) In all cases of sudden unexpected death in pediatrics, the office shall provide the caregivers of the deceased with information from the office of the child advocate, including a list of publicly available services for sudden unexpected death in pediatrics as well as information about how to receive support from the office of the child advocate in accordance with M.G.L. 18C § 5 (d). The office of the chief medical examiner shall provide this list to the caregivers of the deceased no later than three (3) days after receipt of the decedent.

(b) The office in coordination with the department of public shall provide, as close to the time of incident as possible, information provided by the office of the child advocate, including a list of publicly available services as well as information about how to receive support from the office of the child advocate in accordance with M.G.L. 18C § 5 (d).

SECTION 50. Chapter 111 of the General Laws, as so appearing in the 2022 Official Edition, is hereby amended by inserting after section 51L the following section:

51M. Training for hospital and emergency personnel in sudden and unexpected death in pediatrics.

(a) the department shall train emergency service and hospital personnel on providing information to caregivers of a child who has experiences sudden unexpected death in pediatrics,

644 as defined in M.G.L 18C §1, about how to receive support from the office of the child advocate
645 in accordance with M.G.L 18C §5(d).

646 SECTION 51. Subsection (f) of section 23 of chapter 119 of the General Laws, as
647 appearing in the 2022 Official Edition, is hereby amended by striking out the sixth sentence.

648 SECTION 52. Subsection (h) of said section 23 of said chapter 119, as so appearing, is
649 hereby further amended by striking out the second paragraph.

650 SECTION 53. Chapter 119 of the General Laws, as so appearing, is hereby amended by
651 inserting after section 23C the following section:-

652 Section 23D. (a) As used in this section, the following words shall, unless the context
653 clearly requires otherwise, have the following meanings:-

654 “Child” means any child, youth or young adult who is under the custody, care or
655 responsibility of the department.

656 “Child-specific family” means a family that includes a non-relative (i) who is significant
657 in a particular child’s life, or (ii) to whom the child and/or parent(s) ascribe the role of family
658 based on cultural and affectional ties or individual family values.

659 “Department” means the Department of Children and Families.

660 (b) The department shall present a document listing the rights enumerated in subsection
661 (d) to the parent(s) of each child in its care, the foster parent(s) of each child in its care and each
662 child in its care, or where developmentally appropriate, the child’s attorney, when the child
663 enters care and at other times the department deems appropriate. Within 3 months of the
664 effective date of this statute, the department shall create a simple and plain language version of

665 these rights as they are enumerated below so that they are accessible and easily understood by
666 children and youth in care. This simple and plain language version shall be created with the
667 participation of lived experience community members. The department shall explain these rights
668 to the child in a developmentally appropriate way when the child enters the department's care.
669 The department shall ensure the document is translated into the language spoken by the child, the
670 child's parent and the foster parent(s). The document shall be posted in all congregate care
671 facilities in a public space where all residents have access, prominently on its website and in all
672 area offices. The department shall present the document for continual use to the child's attorney
673 and parent(s) and display the document prominently on its website and in all area offices.

674 (c) The department shall amend any regulations or policies that may conflict with this
675 section in a timely fashion.

676 (d) Each child has the following rights:

677 (1) Safety and Security:

678 (i) Each child shall be treated with dignity, respect and consideration, and has the right to
679 have their privacy respected.

680 (ii) Each child has the right not to be discriminated against, physically hurt or harassed by
681 department staff, foster parents, the child's attorney or service providers on the basis of religion,
682 race, color, creed, gender, gender identity, gender expression, sexual orientation, national origin,
683 age, disability, culture, language or ethnicity.

684 (iii) Each child has the right to a placement that is gender-affirming and free from
685 physical, psychological, sexual, emotional or other abuse, neglect or exploitation.

(iv) Each child has the right to access personal possessions, personal space and privacy with allowance for safety.

(v) Each child has the right to autonomy of all pictures, taken by any individual, of themselves as appropriate.

(vi) Each child has the right to access sufficient healthy food, clothing, personal care products and items that preserve and promote the child's family's religion and culture and that of the child's family and the child's gender-identity as well as the child's specific hair and body needs.

(vii) Each child has the right to be placed in a safe and nurturing environment and receive appropriate care and treatment in the least restrictive setting available that can meet the child's needs and addresses their trauma history. The environment shall include the child's culture, religion and identity as nearly as possible to the home of origin.

(viii) Each child has the right not to be placed, housed or detained in a secure department of youth services placement based on the department of children and families' inability to provide an available and appropriate foster placement. The department shall not advocate for bail of any amount for children in its care or custody.

(ix) Each child has the right to developmentally appropriate information about a foster family or program prior to being placed whenever possible and, whenever possible and appropriate, shall have an opportunity to meet the foster parent or program staff before placement occurs. If the foster placement is only able to accommodate the child for a limited time, the child shall be notified of the anticipated duration of the child's stay with that foster placement. The child shall be informed of a placement change and the reason(s) for the change at

least 5 days in advance whenever possible. When a change is made in an emergency circumstance, the child shall be given as much notice as possible. The child's attorney shall be notified simultaneously. The child's belongings shall be packed with care and the child shall be allowed to bring their essential belongings and comfort items with them.

(2) Connections to Family, Community and Identity:

(i) Each child has the right to know, understand, learn about and develop the child's racial, cultural, linguistic, gender, religious and ethnic identity, including but not limited to clothing, hair, other cultural expressions of identity and body care and to a placement that will provide or maintain the connections necessary to preserve and promote the child's identities.

(ii) To the best of the department's ability, each child has the right to preserve and maintain all languages the child entered care speaking and to reside in a placement that provides or facilitates appropriate language access.

(iii) Each child has the right to be placed according to the child's gender identity and referred to by the name and gender pronouns preferred by the child. A child's sexual orientation and gender identity and expression shall remain private unless the child permits the information to be disclosed, the disclosure is required to protect the child's health and safety, or disclosure is compelled by law or a court order.

(iv) Each child has the right to a placement identified and located through due diligence and that prioritizes the child's parents, relatives and child-specific family, using full and fair consideration, as potential placement providers. The child's parents shall be considered first, then relatives and then child-specific family.

(v) Each child has the right to prioritization of placement with the child's siblings or half-siblings in all settings and permanency plans, including but not limited to foster care, congregate care, and adoption, unless the joint placement is contrary to the safety or well-being of any of the siblings. The department shall work to address barriers to placing siblings together, including the recruitment and retention of foster and adoptive parents able to parent sibling groups. The department shall ensure that the child be placed in as close proximity as possible to siblings if unable to be placed in the same setting, and shall facilitate frequent and meaningful contact regardless of geographic barriers, if it is not harmful to the safety and well-being of each sibling.

(vi) Each child has the right to family time of a duration and frequency and in a setting that (A) is consistent with the developmental or clinical needs of the child and (B) promotes and preserves their connections with their family. Family time shall take place in person or outside of a department office whenever possible.

(vii) Each child has the right to other forms of parental contact, including but not limited to mail, phone calls, videoconferences, email and texts if they have their own phone and if not harmful to the safety or well-being of the child. All placements, including congregate care programs, shall facilitate access to virtual forms of contact.

(viii) Each child has the right to assistance to maintain positive contact with other family members and significant other positive relationships in the child's life, including but not limited to teachers, friends and community individuals.

(ix) Each child has the right to be treated as a family member in a foster family and, whenever possible, be included in a foster family's activities, holidays and traditions taking into consideration factors that include but are not limited to the child's age and trauma history. Each

child shall have the opportunity to be included in the daily activities of the family to maintain the most normal daily routine and environment as possible.

(3) Health Care and Accessibility:

(i) Each child has the right to access appropriate, timely and gender-affirming medical, reproductive, dental, vision, mental and behavioral health services regularly and more often as needed.

(ii) Each child has the right to discuss any questions or concerns the child has relating to medication or other physical, mental or behavioral health treatment with a healthcare provider and to understand the medications and/or treatment provided, its purposes and side effects in a developmentally appropriate way.

(iii) Each child has the right to out-of-home placements with reasonable accommodations for any disabilities the child may have, consistent with state and federal law. Reasonable accommodation(s) will be provided in a timely manner and in such a way as to protect the privacy of the child. Each child also has a right to discuss any disabilities with the department and request adaptive equipment, auxiliary aids or services.

(4) Education, Employment and Social Connections:

(i) Each child has the right to attend school regularly, to educational stability, to educational supports and to an education that meets their needs under federal and state law.

(ii) Each child has the right for the department to prioritize school stability by (A) placing children as close to home as possible and, (B) maintaining the child at their school of origin

unless it is found, in a Best Interest Determination (BID) meeting pursuant to federal law, not to be in their best interest to do so.

(iii) Each child has the right to participate in developmentally appropriate school, extracurricular, enrichment, religious, cultural, linguistic, ethnic and social activities and to have any placement provider use the reasonable and prudent parenting standard when making decisions regarding participation in such activities.

(iv) Each child has the right to achieve developmentally and religiously appropriate, age-related milestones, including but not limited to obtaining a driver's license, opening bank accounts, birthday celebrations, religious ceremonies or graduations.

(v) Each child has the right to be informed of and supported in accessing all available services through the department, including but not limited to educational, vocational and employment services, assistance in acquiring life skills, educational assistance including but not limited to tuition and fee waivers for post-secondary education, financial support, housing support, assistance with credit reports and resolving inaccuracies, training and career guidance to accomplish personal goals and prepare for the future, employment supports available to children in care and adaptive equipment or auxiliary aids and supports.

(vii) Each child has the right to developmentally appropriate education on financial preparedness, job readiness, appropriate use of social media, education options, healthy relationships, physical, mental, sexual and reproductive health.

(5) Resources and Supports:

(i) Each child has the right to reasonable access to a caseworker who can make case plan decisions and shall include the opportunity for the child to have private conversations regarding any questions, grievances or concerns. Reasonable access shall include the department's social worker and supervisor's office telephone numbers and email addresses as well as, at a minimum, monthly visits by the department. The department shall also provide the child an emergency contact number for a department staff member who can make decisions and take action with respect to the child during non-business hours.

(ii) Each child has the right to participate as developmentally appropriate in the development and review of the action plans and family time and visitation plans, their Individualized Education Program and Best Interest Determination and shall be consulted as the department formulates or updates said items. Children aged 14 and older shall also be presented with the action or service plan for their review, written feedback and signature. A child has the right to request that their foster parent(s) participate at foster care reviews and to object to their participation if a child does not want them to attend.

(iii) Each child has the right to be informed, in a developmentally appropriate way, of the meaning of all documents that they are asked to sign by the department and/or its agents/contractors/providers including the Voluntary Agreement for Placement and documents of similar importance. A child shall have their attorney present whenever asked to sign any documents by the department or its agents/contractors/providers, or the document shall be provided in a timely fashion to the child's attorney to give an opportunity for review in advance of presenting it for signature.

(iv) Each child has the right to be informed in a developmentally appropriate way of the reason(s) the department became involved with the child's family, why the child came into care and why the child is still in care. The department shall offer support through the review process to address any possible trauma caused by a child's access to their case files. Upon turning 18, the youth will have the right to access their case files, barring any confidential or legally privileged information.

(v) Each child aged 14 or older has the right to be included in foster care review meetings, permanency hearings and lead agency team meetings except for those parts that involve information that is confidential regarding a previous or future adoptive, kinship or foster parent under federal or state law, and unless documented by court order that participation would be detrimental to the child. The department shall provide that child the ability to offer input to the department before a final decision is made with respect to determining or changing placement or permanency. If the child is unable to attend in person, by phone or video, the child shall have the right to submit a written statement to be considered at the meeting or hearing.

(vi) Each child has the right to department-provided adequate notice of all court hearings. To the extent possible, the notice shall include the date, time and location of the hearing. The department shall ensure the child understands the child's right to attend court hearings and speak to the judge regarding any decision that may have an impact on the child's life.

(vii) Each child has the right to access their medical, dental and educational records held by the department as well as their personal documents, including but not limited to social security card, birth certificate, health insurance information, state identification card, driver's license, passport and documentation related to their immigration status, including work

834 authorization in a developmentally appropriate way. When a child leaves the care of the
835 department, they shall be given copies of medical, dental and educational records held by the
836 department and original copies of all personal documents.

837 (viii) If a minor who is aging out of care and is seeking to change their name and/or
838 gender marker on relevant legal documents to affirm their gender identity, before the child ages
839 out of care, the department's attorney must ensure that all relevant legal documents, including
840 birth certificate, social security card, state identification card, driver's license, passport and
841 immigration documentation are updated and corrected before the child departs care. This shall
842 also apply to children in the permanent custody of the department whose parents have had their
843 rights terminated. The department must further provide contact information for providers who
844 are currently providing care for the child. The department shall begin planning to return the
845 documents to the child at least 30 days before the child leaves care to be able to give the
846 documents to the child on the day of the child's departure. As soon as a child in the department's
847 care is eligible the department must assist the child in obtaining a state identification card if the
848 child does not have one and wants one.

849 (ix) Each child has the right to an attorney when the department seeks custody of the
850 child and to meaningful contact with said attorney including at foster care reviews. Each child
851 shall be informed, when appropriate, by the department of the name and phone numbers of the
852 assigned attorney. Each child, child's parent and foster parent shall be informed, when
853 appropriate, by the department that the child can contact the child's attorney, and of the
854 processes to file a complaint regarding the child's attorney and to request a change of attorney
855 for the child. The department's attorney shall notify the child's attorney of each child's

856 placement address and phone number no later than 24 hours after the time of placement or
857 placement change.

858 (x) A child over the age of 14 who has a bank account may receive direct payment from
859 the department through their attorney or the department upon request.

860 (xi) Each child, and their attorney, has the right to be informed if the department applies
861 for any benefits on behalf of the child, including but not limited to benefits under Title XVI of
862 the Social Security Act, also referred to as "Supplemental Security Income;" benefits under Title
863 II of the Social Security Act, also referred to as "Retirement, Survivors or Disability Benefits,"
864 and if the department applies to be the representative payee for such benefits. The department
865 shall preserve all of such funds received in an interest-bearing account belonging to the child so
866 the funds are available for the child's benefit and use while they are in care, and the child's use
867 when they turn 18. The department shall not use such funds for the customary costs of foster
868 care, nor shall it use such funds to pay the costs of items which would ordinarily be funded by
869 another source. If necessary, the department shall preserve said funds in an ABLE (Achieving a
870 Better Life Experience) account authorized by Section 529A of the Internal Revenue Code of
871 1986, or another trust account for the child determined not to interfere with SSI or asset
872 limitations for any other benefit program. Each child, and their attorney, shall have the right to
873 be informed by the department if they stop receiving said benefits, or are no longer eligible to
874 receive them.

875 (6) Transition Age Youth

876 (i) Each child, age 14 or older, has the right to collaborate with the department to plan
877 their transition from foster care to adulthood. Transition planning should cover all areas needed

878 for a youth to be stable and successful as an adult, including but not limited to, planning for visits
879 and/or contact with parents and siblings; building relationships with other caring adults,
880 particularly with life-long connections; making an education plan including post-secondary
881 education; finding vocational, employment and career counseling and placement; securing stable
882 housing; developing expertise in daily living skills; maintaining physical, reproductive and
883 mental health care and health insurance; learning how to access community resources and public
884 benefits and services; connecting with other state agencies; developing financial skills including
885 but not limited to, understanding budgeting and money management as well as checking and
886 savings accounts; and receiving, understanding and correcting, if applicable, the child's
887 consumer credit report. The department shall provide all associated services and supports
888 necessary for such planning.

889 (ii) Each child, who turns 18 while in the custody of the department, has the right to
890 continue under the responsibility of the department and receive young adult services until turning
891 23, pursuant to federal requirements. Each child has the right to be offered a Voluntary
892 Placement Agreement by the department in the month prior to their turning 18 years old. The
893 Voluntary Placement Agreement shall be developed together with the child during permanency
894 and transition planning. Each child has the right to be made aware of this right and any federal
895 requirements governing services for transition age youth throughout the transition planning
896 process.

897 (iii) Each child has the right to a transition plan at least one year prior to turning 18 years
898 old crafted by the department at the direction of the transition age youth, regardless whether they
899 will continue under the responsibility of the department upon turning 18, that includes
900 personalized, detailed, tangible, available and clear options for resources for meeting their basic

901 needs including, but not limited to, housing, education and vocational supports which fulfill the
902 requirements of 42 U.S.C. s.675 (5)(H), as amended.

903 (iv) Each child aged 18 and older, who has chosen to remain under the responsibility of
904 the department has the right to engage and re-engage with the department under a Voluntary
905 Placement Agreement at any time for any reason.

906 (v) Each child has the right to all department-identified, appropriate housing
907 opportunities available to a youth turning 18, a young adult leaving the care of the department
908 after the age of 18 and a youth who re-enters the department.

909 (vi) Each child has the right not to be made homeless or redirected to shelter by the
910 department upon said child turning age 18.

911 (7) Remedies

912 (i) Each child has the right to have these rights enforced. The department shall not
913 retaliate against or punish a child for asserting their rights.

914 Nothing in this section shall be construed to diminish the rights, privileges, or remedies
915 of any person under any other federal or state law.

916 (ii) Each child has the right to department-provided contact information for the
917 ombudsperson, the office of the child advocate and the court when they enter the care and
918 custody of the department and upon request. If it is developmentally inappropriate to provide the
919 child with such information, a child's attorney may be provided with this contact information.

920 (iii) Each child has the right, if the child, the child's parent, the child's attorney, the
921 child's social worker or the child's foster parent or placement provider believes any of the above

922 rights have been violated, to discuss the alleged violation with the department's ombudsman, file
923 a complaint with the office of the child advocate, and those with appropriate standing, may
924 request a fair hearing or petition the Juvenile or Probate and Family Court for a determination
925 and enforcement of these rights. The department shall not retaliate against or punish a child, a
926 child's parent, an attorney, a social worker, a foster parent or placement provider for asserting
927 this right. If the department, ombudsman, the office of the child advocate or the court determines
928 the child's rights have been violated, the department shall resolve the violation as soon as
929 practicable and make corrections so that the violation does not occur again.

930 (e) The rights enumerated in subsection (d) shall be obligations of the department.

931 (f) The rights enumerated in subsection (d) are not an exhaustive list of rights to which
932 children under the custody, care or responsibility of the department are entitled and should not be
933 read to limit the rights of children, or the responsibilities of the department in any way.

934 (g) The commissioner of the department of children and families, in consultation with the
935 office of the child advocate, shall submit an annual report to the house and senate committees on
936 ways and means, the joint committee on children, families and persons with disabilities and the
937 house and senate clerks' offices on the number and types of complaints or alleged violations
938 received pursuant to this act, as well as the nature of the complaints and/or alleged violations.

939 (h) Not less than every 5 years, the commissioner of the department of children and
940 families, in consultation with the office of the child advocate, shall submit a report to the house
941 and senate committees on ways and means, the joint committee on children, families and persons
942 with disabilities and the house and senate clerks' offices on the costs of fulfilling the rights
943 outlined in subsection (d).

SECTION 54. Section 29 of chapter 119 of the General Laws, as so appearing, is hereby amended by inserting after the second paragraph the following paragraphs:

No later than the third business days after, or until the department's attorney portal with automated notifications is finalized, any non-emergency change in a child's or a young adult's placement or any non-emergency hospitalization, and no later than three business days after any emergency change in a child's or a young adult's placement or any emergency hospitalization, the department shall provide notice of the change in placement or hospitalization to the child's or the young adult's attorney.

No later than the third business day thereafter, or until the department's attorney portal with automated notifications is finalized, the department shall provide notice to a child's attorney if it receives a report under section 51A and the child is the subject of the report. No later than the third business day thereafter, the department shall provide notice to a child's attorney or a young adult's attorney if it receives a report under section 51A that raises substantial questions regarding the suitability of the child's or young adult's current placement or any of the child's or young adult's service providers.

No later than three business days thereafter, the department shall provide notice to a child's or young adult's attorney whenever it becomes aware of: (1) the child or young adult being arrested; (2) the child's or young adult's involvement in any proceeding under this chapter or any criminal investigation or proceeding; (3) the child or young adult being suspended from school; or (4) the child or young adult being the subject of any proceeding regarding his or her suspension or expulsion from school.

SECTION 55. Section 39½ of said chapter 119, as so appearing, is hereby amended by striking out the eighth paragraph.

SECTION 56. Section 51A of chapter 119 of the General Laws, as so appearing, is hereby amended by striking out subsection (k) and inserting in place thereof the following subsection:-

(k) A mandated reporter who is professionally licensed by the commonwealth shall, within 180 days of operating within a professional capacity that qualifies as a mandated reporter, complete training to recognize and report suspected child abuse and neglect, including child sexual abuse. The training shall have a curriculum that has been approved by the child advocate. Mandated reporters shall complete said training at least every two years, for so long as they continue to engage in professional activities that qualify them as mandated reporters.

SECTION 57. Section 51D of said chapter 119, as so appearing, is hereby amended by striking out the eighth paragraph.

SECTION 58. Section 51E of said chapter 119, as appearing, is hereby amended by striking out, in line 2, the figure “51D” and inserting in place thereof the following figure:- “51C”.

SECTION 59. Chapter 209A of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by adding the following new section:-

Section 9A. Orders Protecting Minors.

Any order on behalf of or relative to minor children, remains in effect after the minor reaches the age of majority unless otherwise ordered by the court. Upon reaching the age of majority, the plaintiff may appear at court on the date and time the order is to expire, and the

court shall determine whether or not to extend the order for any additional time reasonably necessary to protect the plaintiff or to enter a permanent order.

SECTION 60. Section 5E of chapter 210 of the General Laws, as appearing in the 2022 Official Edition is hereby repealed.

SECTION 61. Chapter 258E of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by adding the following new section:-

Section 11A. Orders Protecting Minors.

Any order issues on behalf of a minor remains in effect after the minor reaches the majority unless otherwise ordered by the court. Upon reaching the age of majority, the plaintiff may appear at court on the date and time the order is to expire, and the court shall determine whether or not to extend the order for any additional time reasonably necessary to protect the plaintiff and enter a permanent order.

SECTION 62. Item 4800-0015 of section 2 of chapter 28 of the acts of 2023 is hereby amended by striking out the words “provided further, that on December 1, 2022, and March 1, 2023, the department shall report to the house and senate committees on ways and means and the joint committee on children, families and persons with disabilities on: (i) the fair hearing requests filed in fiscal year 2023, using nonidentifying information which shall state, for each hearing request: (a) the subject matter of the appeal; (b) the number of days between the hearing request and the first day of the hearing; (c) the number of days between the first day of the hearing and the hearing officer’s decision; (d) the number of days between the hearing officer’s decision and the agency’s final decision; (e) the number of days of continuance granted at the appellant’s request; (f) the number of days of continuance granted at the request of the

1008 department of children and families or the hearing officer's request, specifying which party made
1009 the request; and (g) whether the department's decision that was the subject of the appeal was
1010 affirmed or reversed; and (ii) the fair hearing requests filed before fiscal year 2023, which have
1011 been pending for more than 180 days, stating the number of those cases, how many of those
1012 cases have been heard but not decided and how many have been decided by the hearing officer
1013 but not yet issued as a final agency decision; provided further, that the department shall maintain
1014 and make available to the public, during regular business hours, a record of its fair hearings, with
1015 identifying information removed, including for each hearing request: the date of the request, the
1016 date of the hearing decision, the decision rendered by the hearing officer and the final decision
1017 rendered upon the commissioner's review; provided further, that the department shall make
1018 redacted copies of fair hearing decisions available within 30 days of a written request; provided
1019 further, that the department shall not make available any information in violation of federal
1020 privacy regulations; provided further, that not later than March 1, 2023, the department shall
1021 submit a report to the house and senate committees on ways and means and joint committee on
1022 children, families and persons with disabilities that shall include, but not be limited to, the: (1)
1023 number of medical and psychiatric personnel and their level of training currently employed by or
1024 under contract with the department; (2) number of foster care reviews conducted by the
1025 department and the average length of time in which each review is completed; (3) the number of
1026 social workers and supervisors who have earned a bachelor's or master's degree in social work;
1027 (4) the total number of social workers and the total number of social workers holding licensure,
1028 by level; (5) number of the department's contracts reviewed by the state auditor and the number
1029 of corrective action plans issued; and (6) number of corrective action plans entered into by the
1030 department; provided further, that on the first business day of each quarter, the department shall

1031 file a report with the house and senate committees on ways and means and the joint committee
1032 on children, families and persons with disabilities on the caseload of the department; provided
1033 further, that the report shall include, but not be limited to: (A) the caseloads of residential
1034 placements, congregate care, foster care, therapeutic foster care, adoption, guardianship, 51A
1035 reports, substantiated 51A reports, the number of children who die in the care and custody of the
1036 department, the number of children currently eligible for supportive child care, the number of
1037 children presently receiving supportive child care and the number of medical and psychiatric
1038 consultation requests made by the department's social workers; (B) the number of approved
1039 foster care placements; (C) the number of children in psychiatric hospitals and community-based
1040 acute treatment programs who remain hospitalized beyond their medically-necessary stay while
1041 awaiting placement and the number of days each case remains in placement beyond that which is
1042 medically necessary; (D) the number of children under the department of children and families'
1043 care and custody who are being served in medical or psychiatric care provided through other
1044 publicly-funded sources; (E) the number of children served by supervised visitation centers and
1045 the number of those children who are reunified with their families; (F) the total number of
1046 children served, their ages, the number of children served in each service plan, the number of
1047 children in out-of-home placements and the number of placements each child has had before
1048 receiving an out-of-home placement; (G) for each area office, the number of kinship
1049 guardianship subsidies provided in the quarters covered by the report and the number of kinship
1050 guardianship subsidies provided in that quarter for which federal reimbursement was received;
1051 (H) for each area office, the total spending on services other than case management services
1052 provided to families to keep a child with the child's parents or reunifying the child with the
1053 child's parents, spending by the type of service including, but not limited to, the number of

1054 children and a breakdown of spending for respite care, intensive in-home services, client
1055 financial assistance and flexible funding, community-based after-school social and recreation
1056 program services, family navigation services and parent aide services and the unduplicated
1057 number of families that receive the services; (I) for each area office, the total number of families
1058 residing in shelters paid for by the department, a list of where the families are sheltered, the total
1059 cost and average cost per family at those shelters and a description of how the department
1060 determines who qualifies or does not qualify for a shelter; (J) for each area office, the number of
1061 requests for voluntary services, broken down by type of service requested, whether the request
1062 was approved or denied, the number of families that were denied voluntary services and received
1063 a 51A report, the reasons for denying the service and what, if any, referrals were made for
1064 services by other agencies or entities; (K) the number of families receiving multiple 51A reports
1065 within a 10-month period, the number of cases reopened within 6 months of being closed and the
1066 number of children who return home and then reenter an out-of-home placement within 6
1067 months; (L) the number of children and families served by the family resource centers by area;
1068 and (M) the number of children within the care and custody of the department whose
1069 whereabouts are unknown; provided further, that not later than January 31, 2023, the department
1070 shall submit a report to the house and senate committees on ways and means and the joint
1071 committee on children, families and persons with disabilities that details any changes to said
1072 rules, regulations or guidelines established by the department in the previous fiscal year to carry
1073 out its duties under chapter 119 of the General Laws including, but not limited to: (I) criteria
1074 used to determine whether a child has been abused or neglected; (II) guidelines for removal of a
1075 child from the home; and (III) standards to determine what reasonable efforts are being made to
1076 keep a child in the home; provided further, that on a monthly basis, the department shall provide

1077 the caseload forecasting office with data on children receiving services and other pertinent data
1078 related to items 4800-0038 and 4800-0041 that is requested by the office; provided further, that
1079 the report shall also contain the number of children and families served by the family resource
1080 centers, by area, and an evaluation of the services provided and their effectiveness.”

1081 SECTION 63. (a) There shall be established a special commission to provide
1082 recommendations on rules, regulations, timelines, and processes for the enrollment of a child in
1083 the department of children and families’ custody to a new school district, including but not
1084 limited to, the timely transfer of relevant records and documentation. The recommendations shall
1085 include, but not be limited to: proposed rules, regulations, and statutory changes needed to
1086 implement the commission’s recommendations.

1087 (b) The special commission shall consist of: the commissioner of the department of
1088 elementary and secondary education or a designee, who shall serve as co-chair; the
1089 commissioner of the department of children and families or a designee, who shall serve as co-
1090 chair; the chairs of the joint committee on children, families, and persons with disabilities; 1
1091 member appointed by the speaker of the house of representatives; 1 member appointed by the
1092 president of the senate; 1 member appointed by the minority leader of the house of
1093 representatives; 1 member appointed by the minority leader of the senate; 1 member appointed
1094 by the governor, who shall have experience as a foster parent; the child advocate, or designee; 1
1095 member appointed by the committee on public council services; 1 member appointed by the
1096 Massachusetts Association of Superintendents; 1 member appointed by the Massachusetts
1097 Teachers Association; 1 member appointed by the Massachusetts Schools Mental Health
1098 Consortium; 1 member appointed by the bryt team of the Brookline Center for Community
1099 Mental Health; 1 member appointed by the parent professional advocacy league; 1 member

1100 appointed by More than Words, Inc.; and 1 member appointed by Citizens for Juvenile Justice
1101 Inc.

1102 (c) Not later than December 31, 2026, the commission shall file its recommendations
1103 with the clerks of the senate and house of representatives, the chairs of the joint committee on
1104 education and the chairs of the joint committee on children, families, and persons with
1105 disabilities.

1106 (d) Not later than 180 days after the commission files its recommendations, the
1107 department of elementary and secondary education, in consultation with the department children
1108 and families, shall promulgate rules and regulations or issue any required guidance to implement
1109 the recommendations of the commission that do not require statutory changes.

1110 SECTION 64. The first report required by subsection (h) of section 23D of chapter 119
1111 of the General Laws, as inserted by section 53 of this act, shall be completed and submitted no
1112 later than December 31, 2026.

1113 SECTION 65. The department shall complete the attorney portal referenced in Section 54
1114 within 1 year of this act's passage.

1115 SECTION 66. Section 62 shall take effect as of July 1st, 2026.